

SENATE BILL 1438

By Walley

a*234/1972,121/1975,96/1983,8/1985,47/2005

AN ACT to amend Chapter 234 of the Private Acts of 1972; as amended by Chapter 121 of the Private Acts of 1975; Chapter 96 of the Private Acts of 1983; Chapter 8 of the Private Acts of 1985; Chapter 47 of the Private Acts of 2005; and any other acts amendatory thereto, relative to motor vehicle privilege tax in Chester County.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 234 of the Private Acts of 1972, as amended by Chapter 121 of the Private Acts of 1975, Chapter 96 of the Private Acts of 1983, Chapter 8 of the Private Acts of 1985, Chapter 47 of the Private Acts of 2005, and any other acts amendatory thereto, is amended by deleting the chapter, as amended, and substituting:

Section 1. Chester County hereby levies a motor vehicle privilege tax in the amount of sixty-five dollars and thirty-five cents (\$65.35) per motor vehicle per year for each motor vehicle, the owner of which resides in Chester County, except that this tax shall not be levied on vehicles held by auto-dealers for resale or on farm tractors. This motor vehicle privilege tax is levied as a condition precedent for the operation of a motor vehicle within Chester County.

Section 2. The County Clerk of Chester County shall collect the tax levied herein.

Section 3. Payment of the tax levied herein shall be evidenced by a receipt issued by the County Clerk, a copy of which must be kept by the owner of the vehicle and by a decal displayed on the license plate of the vehicle.

Section 4. Pursuant to Tennessee Code Annotated, Title 5, Chapter 8, Part 1 and Title 55, Chapter 4, Part 1, a violation of this Act is a Class C misdemeanor.

SECTION 2. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of Chester County. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 3. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 6.